

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Kee Busk                        | Team:<br>Squad #03                  | CCRB Case #:<br>202001540 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 02/15/2020 5:00 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>4/1/2022    | Precinct:<br>75                                       |                                    |                                 |
| Date/Time CV Reported<br>Tue, 02/25/2020 8:19 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 02/25/2020 8:19 AM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. SGT Ramil Casimir | 11100  | 950170 | 090 PCT |
| 2. LSA Dion Hinds    | 00000  | 936771 | 075 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. POF Jessica Alonso   | 04478     | 939864 | 075 PCT  |
| 2. POM Darrell Scraper  | 29011     | 948675 | 075 PCT  |
| 3. POM Mohamed Eldiasty | 03051     | 954765 | 075 PCT  |
| 4. POM Jonathan Ortega  | 01852     | 961043 | 075 PCT  |
| 5. POM Anthony Guidice  | 15765     | 966609 | 075 PCT  |
| 6. POM Andre Ohara      | 09483     | 961031 | 075 PCT  |
| 7. SGT Krystle Kingston | 01751     | 948177 | 075 PCT  |
| 8. PO Mahmudul Bhuiyan  | 19636     | 953682 | 075 PCT  |
| 9. PO Michael Vitale    | 23951     | 954409 | 075 DET  |
| 10. PO John Sikora      | 22498     | 953735 | 075 DET  |
| 11. DT3 Noel Damico     | 06188     | 951650 | 075 DET  |
| 12. SGT Daniel Berardi  | 00729     | 948658 | 075 PCT  |

| Officer(s)            | Allegation                                                                   | Investigator Recommendation |
|-----------------------|------------------------------------------------------------------------------|-----------------------------|
| A . LSA Dion Hinds    | Abuse: Lieutenant Dion Hinds authorized the damage of § 87(2)(b)'s property. | A . Exonerated              |
| B . LSA Dion Hinds    | Abuse: Lieutenant Dion Hinds authorized the entry of § 87(2)(b) in Brooklyn. | B . Exonerated              |
| C . SGT Ramil Casimir | Abuse: Police Officer Ramil Casimir threatened to arrest § 87(2)(b)          | C . Exonerated              |

## Case Summary

On February 25, 2020, § 87(2)(b) filed this complaint over the phone with the CCRB on behalf of himself and his parents § 87(2)(b) and § 87(2)(b). The complaint was initially assigned to former investigator Zev Carter and was subsequently reassigned to the undersigned investigator.

On February 15, 2020, at approximately 5:00 AM, Lt. Dion Hinds, Sgt. Krystle Kingston, Sgt. Daniel Berardi, PO Anthony Guidice, PO Jonathan Ortega, PO Jessica Alonso, PO Darrell Scaper, PO Ramil Casimir, PO Mohamed Eldiasty, PO Mahmudul Bhuiyan, PO Michael Vitate, PO John Sikora, PO Noel Damico, and PO Andre O'Hara, all of the 75<sup>th</sup> Precinct, responded to a possible hostage situation at § 87(2)(b) at § 87(2)(b) in Brooklyn where § 87(2)(b) § 87(2)(b) and § 87(2)(b) are all residents. The officers knocked on the door but got no response. Lt. Hinds ordered PO Guidice to break down the door by using his body weight (**Allegation A: Abuse of Authority**, § 87(2)(g)). Once the door was broken down, Lt. Hinds ordered the officers to enter the apartment with him (**Allegation B: Abuse of Authority**, § 87(2)(g)). While in the apartment, PO Casimir threatened to arrest § 87(2)(b) § 87(2)(b) (**Allegation C: Abuse of Authority**, § 87(2)(g)). Once the officers determined that no one was being held hostage they left without arresting § 87(2)(b) § 87(2)(b) or issuing him a summons.

The investigation obtained body worn camera (BWC) footage was recovered from Sgt. Kingston, PO Guidice, PO Alonso, PO Casimir, PO O'hara, PO Ortega, PO Eladiasty, PO Scaper (**Board Review 1**).

Since the incident date, PO Casimir has been promoted to the rank of sergeant, PO Vitale has been promoted to the rank of detective, PO Sikora has been promoted to the rank of detective, and PO Damico has been promoted to the rank of detective.

## Findings and Recommendations

**Allegation (A) Abuse of Authority: Lieutenant Dion Hinds authorized the damage of § 87(2)(b)'s property.**

**Allegation (B) Abuse of Authority: Lieutenant Dion Hinds authorized the entry to § 87(2)(b) in Brooklyn.**

During his CCRB interview, § 87(2)(b) § 87(2)(b) stated that he was using the bathroom when officers arrived at his home (**Board Review 2**). The only people in the apartment besides § 87(2)(b) § 87(2)(b) were § 87(2)(b) and § 87(2)(b) § 87(2)(b) § 87(2)(b)'s daughter used to live in the apartment, but she did not live there at the time of the incident. § 87(2)(b) § 87(2)(b) did not hear the officers knocking and only knew of their presence after PO Guidice had broken the apartment's front door wide open. No officers showed § 87(2)(b) § 87(2)(b) a warrant, but PO Casimir told him that officers had received a call that § 87(2)(b) § 87(2)(b) was holding someone hostage with a gun inside of his apartment. PO § 87(2)(b) Once the officers determined that no one was held hostage they left without arresting him or issuing him a summons. § 87(2)(b) § 87(2)(b) did not know who called 911 but he believed that his child's mother might have made the original 911 call for this incident.

§ 87(2)(b) § 87(2)(b) could not be interviewed because he was uncooperative with the investigation and § 87(2)(b) could not be interviewed due to medical reasons (**Board Review 3, 4**).

During her CCRB interview, Sgt. Kingston stated that went to § 87(2)(b) § 87(2)(b)'s apartment because

she received a radio transmission about a female being held hostage at gunpoint by her boyfriend inside § 87(2)(b) at § 87(2)(b) in Brooklyn (**Board Review 5**). An officer, whom Sgt. Kingston did not remember, reviewed a departmental database on their cell phone § 87(2)(b)

Another officer, whom Sgt. Kingston did not remember called the 911 caller back multiple times and the caller hung up on the officer. Sgt. Kingston believed that someone in the apartment was in danger of serious physical injury because of what she learned about the history of violence between the parties and the information that the caller provided to the 911 operator. Although she could not remember how she knew this, Sgt. Kingston remembered that Lt. Hinds made the decision for the officers to enter the apartment. Lt. Hinds also gave clearance for PO Guidice to break the door down using his body weight. No other officer gave any permission to break down the door or enter the apartment besides Lt. Hinds. Once the door was broken down and after the officers had entered the apartment, Sgt. Kingston stayed in the living room by the apartment door as PO Guidice, PO Casimir and PO Bhuyian entered the rest of the apartment. After the officers conducted walked through the apartment, they concluded that the female who had called 911 was not inside the apartment and then left.

During his CCRB interview, PO Casimir stated that he received a radio transmission regarding a female held at gun point at § 87(2)(b) in Brooklyn (**Board Review 6**). When PO Casimir arrived, there were approximately ten additional officers at the incident location due to the severity of the incident. PO Casimir and other officers had knocked on the door, but no one opened the door, even though there was a shuffling noise behind the door. A female officer, who PO Casimir did not remember, was a domestic violence officer who had experience with either the person or the apartment. Lt. Hinds, who was the only supervisor on scene, was the officer who authorized that the door be taken down because the situation was exigent. PO Casimir was certain that this situation was exigent and that someone could have been in serious danger. PO Casimir believed someone was in danger because the caller described being held hostage at gun point and the verified 911 callback confirmed those details. PO Casimir did not know who conducted the callback call. The sounds of movement behind the door also raised PO Casimir's suspicions. § 87(2)(b)

The officers entered the apartment, determined that there was no hostage situation and then left.

The BWC footage that was recovered is consistent with all of the testimonies above (**Board Review 1**). Sgt. Kingston's footage captures the incident before the entry the best and PO Casimir's BWC footage captures the entry the best.

At 0:35 minutes in Sgt. Kingston's BWC footage (file ending 05-09-08), Sgt. Kingston rings § 87(2)(b)'s doorbell several times and does not get an answer (**Board Review 1**). Lt. Hinds, PO Casimir, PO Alonso are all present at this point. At 0:51 minutes, Sgt. Kingston calls a phone number and then shortly after an automated voicemail box voice can be heard. At 1:32 minutes, Lt. Hinds knocks on § 87(2)(b)'s door and rings the door and gets no response. Additional officers then knock on the door and ring the doorbell and receive no response. At 2:15 minutes, another officer loudly bangs on the door and receives no response. At 2:45 minutes, Sgt. Kingston speaks with one of § 87(2)(b)'s neighbors who states that she did not hear any arguments coming from § 87(2)(b)'s apartment. At 3:07 minutes, Sgt. Kingston begins talking about a domestic incident report involving assault in the third degree and criminal mischief. At 5:40 minutes, Sgt. Kingston speaks into her radio and asks for a callback for § 87(2)(b). At 6:01 minutes, Sgt. Kingston asks an unknown officer if she heard the sound of a toilet and if the toilet belongs to § 87(2)(b). It is unclear if Sgt. Kingston receives a response. Sgt. Kingston then asks an unknown

officer if they know the building has a fire escape and the officer replies they do not know.

At 0:02 minutes in PO Casimir's BWC footage (file ending 05-16-00), although there is no audio, Lt. Hinds can be seen standing next to § 87(2)(b) § 87(2)(b)'s front door, he looks in the direction of PO Guidice and then points towards the door several times (**Board Review 1**). At 0:13 minutes, PO Guidice walks over to the door and hits his body into the door twice before the door opens. Once the door is open officers begin to enter into § 87(2)(b) § 87(2)(b)'s apartment.

The initial 911 call placed by a female individual is consistent with the testimonies above (**Board Review 7**). At 0:00 minutes, the individual requests police assistance to the location. At 0:40 minutes, the individual states that her emergency is that she is in a room with her boyfriend and is being held hostage. The individual identifies her boyfriend as § 87(2)(b) § 87(2)(b) and states that he also has a gun. The individual states that she was held hostage for three hours in the back room of the apartment. At 1:39 minutes, the individual spells § 87(2)(b) § 87(2)(b)'s name and describes him as a 5'7" tall Black Haitian male, with a medium build, wearing a white shirt, blue sweatpants. The individual also stated that § 87(2)(b) § 87(2)(b) threatened to kill her.

The radio transmission audio for this incident is also consistent with the testimonies above (**Board Review 8**). At 0:00 minutes, the central operator relays a possible abduction at § 87(2)(b) § 87(2)(b) at § 87(2)(b) § 87(2)(b). The central operator adds that a boyfriend has a female held hostage with a firearm. The central operator describes the boyfriend as § 87(2)(b) § 87(2)(b) who is a Black Haitian male who is 5'10" tall, with a medium or heavyset build and is wearing a white shirt, blue sweatpants. At 13:48 minutes, Sgt. Kingston requests a call back at § 87(2)(b) § 87(2)(b) which then leads to a dial tone followed by voicemail box audio. At 16:11 minutes, Sgt. Kingston requests a second call back, but there is no audio to confirm any details about the second call back.

NYPD Event § 87(2)(b) § 87(2)(b) is consistent with the initial 911 call and radio audio (**Board Review 9**).

The city involved incident report prepared by PO Ortega is consistent with the statements above as well as the video footage and audio evidence (**Board Review 10**).

§ 87(2)(b) § 87(2)(b) the organization that operates public safety of § 87(2)(b) § 87(2)(b)'s building, provided the incident report and an image of the damage, which were both prepared by Special Patrolman Sipko (shield #1882) (**Board Review 11, 12**). The incident report was consistent with the testimonies above and the image showed that the door or door frame was bent as a result of the entry.

No surveillance footage from the building could be recovered because it had expired (**Board Review 11**).

In the case of *People v Desmarat*, 38 A.D.3d 913, the court decided that a warrantless entry may be made pursuant to the emergency doctrine if the officers reasonably believe an emergency exists (**Board Review 13**). The prime example of an emergency is when an officer reasonably suspects someone's life may be in danger. The officers' search must not be primarily motivated by their intent to arrest and seize evidence. Lastly, there must be some reasonable basis to associate the emergency with the area or place to be searched.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

**Allegation (C) Abuse of Authority: Police Officer Ramil Casimir threatened to arrest § 87(2)(b).**

During his CCRB interview, § 87(2)(b) § 87(2)(b) stated that he was standing in the middle of the hallway outside of the bathroom when the officers entered his apartment (**Board Review 2**). PO Casimir told him to move twice, and each time § 87(2)(b) § 87(2)(b) refused. After the second request, PO Casimir told § 87(2)(b) § 87(2)(b) that he would be arrested if he did not move. § 87(2)(b) § 87(2)(b) was not intentionally blocking the path of the officers, but he was upset and wanted the officers to leave. After the threat, PO Casimir began to walk through the apartment.

During his CCRB interview, PO Casimir stated that when the officers entered, they saw § 87(2)(b) § 87(2)(b) standing in the doorway (**Board Review 6**). PO Casimir told § 87(2)(b) § 87(2)(b) that he wanted to enter the apartment and § 87(2)(b) § 87(2)(b) asked for a warrant as he stood in the way of officers entering the rest of the apartment. PO Casimir explained to § 87(2)(b) § 87(2)(b) that he could be arrested for “obstruction” if he did not move. PO Casimir also explained to § 87(2)(b) § 87(2)(b) that there were exigent circumstances, and a warrant was not needed.

During her CCRB interview, Sgt. Kingston stated that she entered the apartment and § 87(2)(b) § 87(2)(b) did not prevent officers from entering the apartment, but if he did, then he could have been arrested for obstructing governmental administration (**Board Review 5**). Sgt. Kingston did not witness PO Casimir threaten to arrest § 87(2)(b) § 87(2)(b) if he did not get out of the officers’ way as they tried to enter the rest of the apartment.

The BWC footage that was recovered was consistent with § 87(2)(b) § 87(2)(b)s and PO Casimir’s testimony and PO Alonso’s BWC footage captures the incident best (**Board Review 1**). At 0:40 minutes in PO Alonso’s BWC footage (file ending 05-17-24), PO Alonso had just entered § 87(2)(b) § 87(2)(b)s apartment and is next to PO Casimir. § 87(2)(b) § 87(2)(b) can be seen standing in a hallway that is approximately four-foot-wide right outside of the bathroom. § 87(2)(b) § 87(2)(b) appears to be taking pictures of the officers’ shield numbers. Both officers are talking with § 87(2)(b) § 87(2)(b) inside his apartment and explain that they need to check his apartment and because they got a 911 call. § 87(2)(b) § 87(2)(b) is asking for a warrant and tells the officers they cannot enter further into his apartment at an elevated tone of voice and continues asking for a warrant. The officers tell him that they do not need a warrant. At 0:46 minutes, PO Casimir says, “If you do not step out of the way, you’re going to be placed under arrest.” Shortly after, PO Casimir explains that the details of this 911 call made this situation exigent and warrant is not needed. At 0:58 minutes, officers ask § 87(2)(b) § 87(2)(b) to step out of the way and PO Casimir moves § 87(2)(b) § 87(2)(b) to the side and walks past him.

At 9:03 minutes in Sgt. Kingston's BWC footage (file ending 05-09-08), PO Casimir can be heard issuing the threat of arrest to § 87(2)(b) § 87(2)(b) (Board Review 1). At this time, Sgt. Kingston is standing behind Lt. Hinds who is taller than her.

NY CLS Penal Section 195.05 states that a person is guilty of obstructing governmental administration when they intentionally obstruct, impair, or prevent the administration of law or other governmental function (**Board Review 14**). A person can interfere with physical force or interference, or by any means of any independently unlawful act.

In the case of *People v Desmarat*, 38 A.D.3d 913, the court decided that a warrantless entry may be made pursuant to the emergency doctrine if the officers reasonably believe an emergency exists (**Board Review 13**). The prime example of an emergency is when an officer reasonably suspects someone's life may be in danger. The officers' search must not be primarily motivated by their intent to arrest and seize evidence. Lastly, there must be some reasonable basis to associate the emergency with the area or place to be searched.

**§ 87(2)(b), § 87(2)(g)**

## Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) § 87(2)(b) or § 87(2)(b) have been a party.
- Lt. Hinds has been a member of service for 17 years and has been a subject in six CCRB complaints and 16 allegations, of which one was substantiated.:
  - 201909309 involved substantiated allegations of physical force against Lt. Hinds. The Board recommended **Command Discipline B** and the NYPD imposed no disciplinary action.
  - § 87(2)(g)
- PO Casimir has been a member of service for 10 years and has been a subject in 11 CCRB complaints and 21 allegations, none of which were substantiated. § 87(2)(g)

## Mediation, Civil, and Criminal Histories

- § 87(2)(b) § 87(2)(b) declined to mediate this complaint.
- As of November 11, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 15**).
- According to the Office of Court Administration (OCA), § 87(2)(b) § 87(2)(b) has no history of convictions in New York City (**Board Review 16**).

- According to OCA, § 87(2)(b) and § 87(2)(b) have no history of convictions in New York City (**Board Review 17, 18**).

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Squad: 3

Investigator: Jonathan Kee Busk      Investigator Jonathan Kee Busk      02/17/2022  
Signature      Print Title & Name      Date

Squad Leader: Olga Golub      IM Olga Golub      02/18/2022  
Signature      Print Title & Name      Date

Reviewer: \_\_\_\_\_  
Signature      Print Title & Name      Date